

3.

CASE #	CASE NAME	HEARING NAME
CVRI2600663	VASQUEZ vs MERCEDES-BENZ USA, LLC	DEMURRER ON COMPLAINT

Tentative Ruling:

The hearing on the demurrer is continued to September 21, 2026, at 8:30 a.m.. Defendant is ordered ***to meet and confer by telephone, videoconference or in person*** with Plaintiff for the purpose of determining whether an agreement can be reached that would resolve the objections raised in the demurrer. As part of the meet and confer process, Defendant shall identify with legal support the basis of the alleged deficiencies in the *Complaint*. Plaintiff shall provide legal support for her position that the pleading is legally sufficient or, in the alternative, how the pleading may be amended to cure any legal insufficiency.

After meeting and conferring, Defendant shall 10 days before the continued hearing date set forth above do one of the following:

- (1) vacate the hearing on the demurrer;
- (2) file with the court a declaration stating that the parties have agreed that Plaintiff will file a *first amended complaint* before the date set forth above; or
- (3) file with the court a declaration stating the means by which the parties met and conferred and identifying the specific objections in the demurrer that the parties were unable to resolve. (CCP §430.41(a)(3).)

Moving party is ordered to give notice.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600973	CISNEROS vs HALLWAY HEALTHCARE, INC	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Upon the motion of a party to an agreement to arbitrate, the court must grant it unless it finds: no written agreement to arbitrate exists; the right to compel arbitration has been waived; grounds exist for revocation of the agreement; or litigation is pending that may render the arbitration unnecessary or create conflicting rulings on common issues. (CCP § 1281.2.) A proceeding to compel arbitration is in essence a suit in equity to compel specific performance of a contract. (*Freeman v. State Farm Mutual Auto Insurance Co.* (1975) 14 Cal.3d 473, 479.) The motion to compel must set forth the provisions of the written agreement and the arbitration clause verbatim, or such provisions must be attached and incorporated by reference. (CRC 3.1330; see also *Condee v. Longwood Mgmt. Corp.* (2001) 88 Cal.App.4th 215, 218-19.)